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9. FISHERIES IMPACT ASSESSMENT

9.1 Introduction

9.1.1 This section presents a review of the baseline fisheries conditions within the Assessment Area, and the results of the potential fisheries impact assessment relating to the construction and operation of the Project. The location plan and description of the Project are presented in **60722948/A10/FIGURE 2.1** and **Chapter 2**, respectively.

9.1.2 In accordance with the EIAO-TM, baseline conditions for fisheries resources were evaluated using information from available literature and site visits conducted for the purposes of this EIA. Measures required to mitigate any identified adverse impacts are recommended, where appropriate, and residual impacts are assessed.

9.2 Environmental Legislation, Standards and Guidelines

9.2.1 This fisheries impact assessment makes reference to the following HKSAR Government ordinances, regulations, standards, guidelines, and documents when identifying the importance of fisheries resources, and evaluating and assessing potential impacts arising from the Project:-

- EIA Study Brief (ESB-375/2025) issued for the proposed project, Development of the Loop – Eastern Connection Road
- Environmental Impact Assessment Ordinance (EIAO) (Cap. 499) and subsidiary legislation and guidelines
- Technical Memorandum on Environmental Impact Assessment Process (EIAO-TM) Annexes 9 and 17
- EIAO Guidance Note No. 15/2023 – Methodologies for Fisheries Baseline Surveys
- Water Pollution Control Ordinance (Cap. 358)

9.3 Assessment Methodology

Assessment Area

9.3.1 In accordance with the EIA Study Brief No. ESB-375/2025, the Assessment Area for fisheries impacts includes areas within 500 metres from the boundary of the Project and associated works, and other areas that would be potentially impacted by the construction or operation of the Project. Special attention is also given to pond culture resources and activities, as well as any watercourses which may serve as water sources for the fishpond areas. The Assessment Area is shown in **60722948/A10/FIGURE 9.1.**

9.3.2 Literature review and desktop study were conducted to collate the latest baseline conditions regarding fisheries resources within the Assessment Area. The review included:-

- Agriculture, Fisheries and Conservation Department (AFCD) Annual Reports;
- AFCD website on aquaculture;

- AFCD website on Accredited Fish Farm Scheme;
- Report of the Committee on Sustainable Fisheries (2010);
- EIA Report for Development of Lok Ma Chau Loop – EIA Report (AEIAR-176/2013) (CEDD & PlanD, 2013a); and
- EIA Report for North East New Territories New Development Areas Planning and Engineering Study – Investigation – EIA Report (AEIAR-175/2013) (CEDD & PlanD, 2013b).

9.3.3 In addition to reviewing recent aerial photographs, site visits were conducted between July 2022 to December 2023 to verify the condition of ponds and their associated fisheries activities, with particular focus on those within the Project Boundary, where accessible. The conditions of the fishponds and the fisheries activities were observed and recorded. The actual pond status was then further updated based on information obtained from AFCD.

Assessment for Pond Culture Fisheries

9.3.4 The status of fishpond management was investigated with reference to the evidence of aquaculture activities, such as the presence of fisheries operations (e.g. stocking, feeding, harvesting), management activities (e.g. pumping of water, draining, dredging, re-profiling, and maintenance grass trimming), and the presence and conditions of associated equipment (e.g. aerators, conditions of pond bund, fodder). Attention was also given to any watercourses which potentially serve as water sources for fishponds.

9.3.5 Ponds in the Assessment Area were assigned to one of the following categories:

- Active: currently utilised for commercial aquaculture activities (described in **Section 9.3.6**), including commercial fishponds, fish fry ponds, and indoor fish farms;
- Inactive: no current commercial aquaculture activities and management (e.g. overgrown vegetation at pond bunds which hindered culture activities, and lack of equipment such as aerator), but no major physical constraints to its resumption in the short-term, including fishponds with fish present in non-commercial quantities and ponds for recreational fishing or water sports;
- Abandoned: ponds in which there was physical evidence that aquaculture has not been practised for many years (typically ponds with overgrown vegetation or dried up) and/or where there are obvious physical constraints to the resumption of fisheries activities (e.g. inaccessible or fenced off).

Assessment Approach

9.3.6 The criteria and guidelines set out in Annexes 9 and 17 of the EIAO-TM were followed to evaluate and assess the impact of Project construction and operation on the fisheries resources. Potential direct / indirect, on-site / off-site, primary, secondary, cumulative and residual fisheries impacts arising from the construction and operation of the Project were identified and evaluated. Mitigation measures as well as environmental monitoring and auditing programme were recommended, where necessary.

9.4 Baseline Conditions

Pond Culture Fisheries Activities and Resources

Desktop Study

9.4.1 The pond fish / aquaculture industry of Hong Kong is mainly centred in the northwest New Territories. The northern portion of the Project site and the Assessment Area falls partially within this area of aquaculture activities.

9.4.2 According to AFCD (2024a), local inland fishponds covered approximately 1,119 ha in 2024. These ponds produced 1,349 tonnes of freshwater fish with a value of HK$37 million. The latest available data shows that production from local fishponds accounted for about 2% of the total local freshwater fish consumption in 2023 (AFCD, 2023a).

9.4.3 The vast majority of local fishponds engaged in carp polyculture and farmed species such as Bighead Carp, Grass Carp, Common Carp and Silver Carp in combination with Tilapia or Grey Mullet. A small portion (about 11%) of pond fish culture in Hong Kong involve monoculture of carnivorous species such as giant groupers, seabreams, and spotted scats at brackish fishponds near the coastline (AFCD, 2024). The aquaculture species Jade Perch (*Scortum barcoo*) was introduced by AFCD to the local fisheries industry (AFCD, 2011). Since 2010, AFCD has mastered the induced spawning and fry rearing techniques and was able to produce Jade Perch fry in mass quantity, reducing fry cost and maintaining the supply of fry (AFCD, 2023b). A voluntary Accredited Fish Farm Scheme (AFFS) has been introduced by AFCD to enhance the environmental hygiene standards of local aquaculture farms and the quality of aquaculture products (AFCD, 2024b).

9.4.4 Fishponds farms have been gradually declining in number since the 1970s, especially in the Deep Bay area as these farms are being abandoned and/or replaced by urban development. **Table 9.1** presents the AFCD figures on fishpond area and annual fish production in Hong Kong from 2014 to 2024.

Table 9.1 Fishpond Area and Annual Fish Production in Hong Kong from 2014 to 2024

Year	Fishpond Area (ha)	Annual Fish Production (Tonnes)
2024	1,119	1,349
2023	1,129	1,052
2022	1,129	2,073
2021	1,130	2,926
2020	1,130	2,516
2019	1,131	2,278
2018	1,132	2,536
2017	1,132	2,543
2016	1,135	2,543
2015	1,140	2,092
2014	1,140	2,001

Source: AFCD (2021, 2024a)

9.4.5 Under the Environmental Impact Assessment (EIA) Study for the Development of the Loop (the Loop) (CEDD & PlanD, 2013a), site visits were conducted between 2009 and 2010 to investigate the fisheries status of ponds. No fishponds were identified within the Loop, as they were filled and lost after the Shenzhen River Regulation Project, and the area within the Loop was not actively managed and was considered as marshes, dominated by emergent vegetation (prior to the development of the Loop). A mixture of active, inactive and abandoned ponds was identified to the south of the Loop. (CEDD & PlanD, 2013a).

9.4.6 The Agriculture, Fisheries and Conservation Department (AFCD) commenced a Strategic Feasibility Study on the Development of Wetland Conservation Parks System in August 2022 which was completed in October 2024. The Strategic Feasibility Study has reviewed the ecological conditions, land use and planning aspects, aquaculture activities, as well as eco-education and recreational facilities within the proposed Wetland Conservation Parks (WCPs) areas. The proposed Hoo Hok Wai (HHW) WCP, which also covers the San Lau / Nam Hang (SL/NH) area, has the general theme of "A Rural Retreat". Within the proposed HHW WCP, the existing network of fishponds will largely be retained but zoned and managed to enhance the area's ecological capacity while promoting the sustainable modernisation of aquaculture practices. Rural activities such as leisure farming may also be introduced to allow visitors to experience a rural lifestyle and enjoy the idyllic countryside landscape.

Recent Site Visit Findings

9.4.7 Hoo Hok Wai is a core fishpond area in Hong Kong, with many ponds remaining under active production. Aquaculture activities such as drying of ponds, reprofiling, harvesting and feeding were frequently observed. Some ponds, however, were inactive or abandoned; these ponds usually covered with dense vegetation and show no sign of commercial aquaculture activity. Currently, a total of 96 ponds were identified fully or partially within the 500m Assessment Area of the Project, including 71 active fishponds, 7 inactive fishponds and 18 abandoned fishponds. The majority of active fishponds were aggregated at the northern and northwestern of the Project Boundary, while some active ponds were also recorded alongside the current boundary fence road, to the south of the Loop. Inactive and abandoned fishponds were recorded scattered across the Assessment Area, with some larger inactive and abandoned fishponds located south of the Loop.

9.4.8 Fishponds throughout the HHW fall on both government and private land, with only a few scattered government or private land areas. This is because the lot index plan does not specifically define boundaries based on ponds. For those fishponds found to be gated or remained inaccessible, satellite and drone images were reviewed to determine their status (**Table 9.2** refers).

9.4.9 A total of two inactive fishponds and one active fishpond were recorded within the Project Boundary, namely Pond 36 – 38 (**60722948/A10/FIGURE 9.1** refers). Pond 36 (about 1.55 ha) which is currently located mostly on government-owned land, and partially on private lots, has recently been reprofiled and resumed aquaculture activity. Equipment such as aerators related to fisheries operation were observed within the fishpond. Whereas the two Ponds 37-38 (of about 3.07 ha in total) adjacent to Pond 36 were observed to be inactive and gradually becoming overgrown with wetland vegetation. The physical condition of these ponds is generally poor due to lack of management. Approximately 0.14 ha pond bunds of three abandoned ponds (Ponds 39, 39a, and 93) were also recorded partially falling within the Project Boundary.

9.4.10 Extremely limited fisheries activity was recorded outside of the HHW area, and several smaller abandoned fishponds were identified scattered across the Assessment Area, which are potentially for amenity purpose.

Summary of Fisheries Resources

9.4.11 The status and area of ponds within the Assessment Area are summarised in the **Table 9.2** and **60722948/A10/FIGURE 9.1**.

Table 9.2 Status and area (ha) of Ponds within the Assessment Area

Pond Category	Fisheries Status	Number of Ponds#		Total Area (ha)	
		Within Project Boundary	Outside of Project Boundary	Within Project Boundary	Outside of Project Boundary
Active	Commercial aquaculture activities	1	70	1.58^*	53.98
Inactive	No current commercial aquaculture activities and management	2	5	3.07	5.35
Abandoned	Fenced/ abandoned/ overgrown / not for fisheries purpose	0^	18	0.14^	5.91
Total		**96**		**70.03**	

Note:
Some ponds were partially falling within the 500m Assessment Area of the Project, these ponds will be counted as one pond, if water surface area is located within the Assessment Area.

^ Only bund of Pond 39, 39a and 93 fallen within the Project Boundary, which does not count as one pond according to previous note. Therefore, only area of these pond bunds will be counted as within Project Boundary.

*Active Pond area within Project Boundary = 1.55 ha (Pond 36) + 0.03 ha (Pond 93) = 1.58 ha; Abandoned Pond area within Boundary = 0.10ha (Pond 39) + 0.04 ha (Pond 39a) = 0.14 ha

**Figures might not add up due to rounding.

9.5 Identification and Evaluation of Potential Impacts

Construction Phase

Identification of Potential Impacts from Construction-Direct Impacts

9.5.1 As proposed in **Section 8** of this Report, the construction of the Project Alignment will adopt a phased approach, delineating the alignment into Phase 1 (Section 1 and Section 3) and Phase 2 (Section 2 and Section 3) during the construction phase, as illustrated in **60722948/A10/FIGURE 9.2**. The affected fishpond habitats are mainly located within the Phase 1 of the construction, excavation works will be required during cut-and-cover underpass road construction within portions of Pond 36-38 (about 1.13 ha including 0.24 ha of active ponds), and the bunds ponds 36-39 and 39a adjacent to the construction area of the Project Alignment, totalling to approximately 1.48 ha of

pond habitat impacted under Phase 1, whereas only about 0.03 ha of pond bund from Pond 93 will be impacted under Phase 2. Overall, approximately 1.51 ha of pond habitat will be impacted during construction phase, and the associated construction works at Pond 36-38 would include draining the water in ponds before commencement of any excavation and construction works.

9.5.2 Enhancement measures, such as frequent pond drain downs and temporary fish stocking, would be implemented in the remaining area of Pond 36-38, to retain its functional value and maintain its attractiveness to waterbirds and other wetland-dependent species during the construction phase. This includes approximately 1.21 ha of active fishpond and 2.08 ha of inactive fishpond, totally to approximately 3.29 ha.

9.5.3 A temporary aboveground wildlife crossing will be provided above the construction area through Pond 36-37, as illustrated in **60722948/A10/FIGURE 9.2**. The crossing (approximately 40 m wide) will include a central water feature and dense shrub planting along the edges to minimise disturbance and facilitate wildlife movement (e.g. Eurasian Otter). The structure will temporarily occupy part of existing fishponds, and the corresponding temporary loss have already been assessed for direct impact due to construction works, therefore no additional impact on pond and fish production are anticipated. Upon completion of the underpass roads, the excavation cofferdam will be backfilled and fully enclosed, and the Ecological Area (EA), the Meander, and fishponds will be reinstated by the Contractor. In addition, Pond 36 -38 will be converted as ecological enhanced ponds. Therefore, permanent loss of fishponds or reduction in aquaculture production is expected.

9.5.4 As mentioned in **Section 8** of this Report, under the phased approach to construction of the Project, the ecological impacts resulting from the loss of pond habitat shall be compensated using existing Offsite Wetland Compensation Areas of the Loop (i.e. OWCA Areas 2 and 9). However, about 0.24 ha of active pond from Pond 36 would still be subject to potential loss of fisheries production due to construction works. Although Pond 36 has been reprofiled since site checks conducted in October 2024, and equipment such as aerators were observed within the fishpond during site check at October 2025 (**Section 9.4.9** refers), the pond was previously identified as inactive. No obvious fisheries activity observed and most areas of the pond were dry during site visits conducted between July 2022 to December 2023. Consolidating previous and recent observation, it is anticipated that the current commercial fish production had only just commenced at the time of this assessment and the potential contribution to the annual fisheries production in Hong Kong would be low, hence the impact to fisheries production is considered of negligible during the construction phase. Meanwhile, no evidence of commercial aquaculture activities was observed in Ponds 37–38. Therefore, the temporary impact on aquaculture activities is considered negligible.

Identification of Potential Impacts from Construction-Indirect Impacts

Deterioration of Water Quality and Hydrological Condition

9.5.5 Indirect water quality impact from construction activities may affect the survival of cultured fish. For example, accidental spills of oils and other chemicals could affect aquatic organisms (including aquaculture fisheries), resulting in lethal / sublethal impacts (e.g. direct mortality, reproductive retardation). Removal of vegetation during site formation could also elevate sediment levels in site runoff, increasing suspended solids (SS) level in the aquatic environment. Furthermore, discharge from land-based construction works (e.g. excavated materials and sediments from construction works in ponds, general cleaning and polishing, wheel washing, dust suppression, utility installation, etc.) and construction site runoff (e.g. runoff and erosion of exposed bare

soil and earth, earth working area and stockpiles, etc.) could also cause a temporary increase in SS level. Such increase in suspended particles could potentially injure cultured fish and clog their respiratory and feeding systems, resulting in impact on fisheries production.

9.5.6 Mitigation measures will be implemented to control runoff and drainage from the construction site, as well as the adoption of guidelines and good site practices for handling and disposal of construction discharges, excavated materials and sediments (refer to **Chapters 5** and **6**). Unacceptable impacts on water quality, and the associated potential indirect injury / mortality on cultured fish are not expected.

Bund Stability and Water Seepage

9.5.7 Construction activities that occur adjacent or in close vicinity to fishponds may result in indirect impacts on these fishponds by affecting the stability of the pond bund, potentially resulting in instability of the pond structure, or water seepage. In the absence of mitigation measures, this could inhibit pond usage and result in potentially minor to moderate impacts on the remaining ponds adjacent to the development boundary. With appropriate mitigation measures (i.e. sheet pile wall) implemented to ensure the stability of the pond bund during construction phase, adverse impacts on aquaculture activities are not anticipated.

Blockage of Existing Access

9.5.8 Proposed construction works may potentially restrict pond operators' access to fishponds, which could affect the implementation of management strategies and the yield of fisheries. Without mitigation measures, this may result in minor to moderate impact on fishpond area. Mitigation measures (e.g. provision of temporary road and access arrangement) would be in place to minimise the potential blockage and the associated impact on fishpond area.

Dumping of Construction Waste

9.5.9 Dumping of construction waste or excavated material on fishponds other than those already indicated as requiring draining for construction purposes could cause a direct impact on pond fisheries. No direct dumping of waste from these construction works will be allowed, no unacceptable impact would be expected.

Operational Phase

9.5.10 Upon completion of the Project, Pond 36-38 (hereafter referred to as Area 4) will be converted as ecological enhanced ponds of approximately 4.63 ha, which will enhance the ecological value and function of these ponds, supporting species of conservation interest. However, a small portion of Pond 38 (approximately 0.25 ha) will be permanently lost under the Project Alignment due to the construction of the ventilation opening and maintenance access. Therefore, the final area of Area 4 to be ecological enhanced ponds will be of 4.38 ha.

9.5.11 Although ponds under Area 4 will be reinstated as ecological enhanced ponds, area loss of about 4.38 ha for fisheries production is anticipated (as the primary function of these ponds would be for ecological habitat provision). Given that Pond 37-38 are inactive ponds with no fisheries production expected (**Section 9.5.4** refers), and that Pond 36 only resumed fisheries production recently, it is expected that the contribution of fisheries production from Area 4 is relatively low, therefore the overall impact on the loss of fisheries production under the Project is considered negligible. No further

mitigation would therefore be required to compensate for this loss in fisheries production.

Surface Runoff

9.5.12 Surface runoff from the ECR could potentially cause impacts on nearby water bodies. The presence of oil, grease and grit on surfaces of road, as well as cleaning agents used for road washing may affect the water quality of nearby waterbodies (e.g., entering nearby drainage system or watercourse). With reference to **Section 5**, with proper implementation of recommended measures, no adverse water quality impact from surface runoff on fishpond water quality and fisheries production are anticipated.

Bund Stability and Water Seepage

9.5.13 The temporarily affected fishponds will be reinstated upon completion of the ECR, therefore, no adverse impacts on the stability of pond structures or water seepage issues seepage are anticipated.

Blockage of Existing Access

9.5.14 There is concern on blockage of existing paths to active fishponds during the operational phase (i.e. blocked by proposed connection roads). The ECR design has included connections to existing access points to the HHW area, therefore no long-term impacts to pond operators accessing fishpond areas are expected.

Impacts to Capture Fisheries

9.5.15 No capture fisheries are present within the Study Area and as such no impacts are predicted to capture fisheries in the construction or operational stages of this Project.

Impacts to Water Systems of Fisheries Importance

9.5.16 Given the distance to the closest water systems of fisheries importance (e.g. Deep Bay) from the Assessment Area, is approximately 10km, it is considered that construction and/or operational impacts to water systems of fisheries importance are insignificant.

Summary of Fisheries Impact

9.5.17 Overall, the temporary and permanent loss of fisheries resources / production from the Project would comprise 1.51 ha and 4.63 ha of ponds respectively. At a cumulative maximum of slightly more than 0.4% of the overall fishpond area in the northwest NT, this is considered a negligible impact to fisheries production. Details of both construction and operation phase fisheries impact under the Project are shown in **60722948/A10/FIGURE 9.2** and summarised in **Table 9.3 and Table 9.4** below.

Table 9.3 Fisheries Impact from Temporary Loss of Aquaculture Ponds During Construction Phase

Criteria	Evaluation	
Location	**Ponds within construction area of the Project Alignment**	**Proposed enhancement measures at remaining area of Pond 36-38**
Nature of impact	Temporary	Temporary

Criteria	Evaluation	
Location	**Ponds within construction area of the Project Alignment**	**Proposed enhancement measures at remaining area of Pond 36-38**
Size of affected area	Direct Impact: Temporary loss due to occupation of pond bund of Pond 36-39, 39a and 93: 0.38 ha Temporary loss due to excavation works in portion of Pond 36 -38: 1.13 ha	Secondary Impact: Temporary occupation of the remaining area of Pond 36-38 for proposed enhancement measures: 3.29ha
	Indirect Impact: No unacceptable impact anticipated with mitigation measures implemented	Indirect Impact: No unacceptable impact anticipated with mitigation measures implemented
Loss of fisheries resources / production	Minor loss due to temporary loss of active fishpond (0.24 ha)	Minor loss due to temporary loss of active fishpond (1.21 ha)
Destruction and disturbance of nursery and spawning grounds	Nil.	Nil.
Impacts on fishing activity	Low	Low
Impact on aquaculture activity	**Negligible**	**Negligible**

Note:
1. Pond bund loss within the construction area of the Project Alignment: 0.38ha = 0.20 ha (Pond 36-38) + 0.18 (Pond 39, 39a, 93).

Table 9.4 Fisheries Impact from Permanent Loss of Aquaculture Ponds During Operation Phase

Criteria	Evaluation	
Location	**Pond within construction area of the Project Alignment**	**Proposed Wetland Enhancement Area Area 4**
Nature of impact	Permanent	Permanent
Size of affected area	Direct Impact: Permanent loss due to construction of ventilation opening in Pond 38: 0.25 ha Indirect Impact:	Secondary Impact: Permanent loss due to conversion of Pond 36-38 (Area 4) to ecological enhanced pond for proposed enhancement primarily focused on ecological habitat provision: 4.38 ha

Criteria	Evaluation	
	Not anticipated with mitigation measures	Indirect Impact: Not anticipated with mitigation measures
Loss of fisheries resources / production	Minor loss due to permanent loss of fishpond (0.25 ha)	Minor loss after conversion to ecological enhanced pond (4.38 ha)
Destruction and disturbance of nursery and spawning grounds	Nil.	Nil
Impacts on fishing activity	Low	Low
Impact on aquaculture activity	**Negligible**	**Negligible**

9.6 Cumulative Impact

9.6.1 The committed major development projects, such as San Tin / Lok Ma Chau Development Node (hereafter referred as the ST/LMC DN) within the project vicinity, would not result in indirect loss of fishponds within the Assessment Area. Fishpond loss arising from the ST/LMC DN would be compensated by establishing the Sam Po Shue WCP which has reserved 40 ha of fisheries enhancement area solely for aquaculture use. Since this project is not predicted to cause significant fisheries impact (i.e. no large area of active fishpond would be affected permanently), there is no potential for significant cumulative impacts within the project vicinity.

9.7 Mitigation of Adverse Environmental Impacts

9.7.1 According to EIAO-TM Annex 17 guidelines, mitigation measures are discussed in this section to avoid, minimise and compensate for identified ecological impacts.

Avoidance

9.7.2 Impacts on significant fisheries resources are largely avoided through the alignment selection process and construction methods for the Project, as discussed in **Chapter 2.**

Minimisation

Dumping of Construction Waste

9.7.3 Illegal dumping of waste and excavated material will be properly managed (see **Chapter 6**), and thus such impact is not predicted to occur.

Bund Stability and Water Seepage

9.7.4 During the construction stage, should works be required close to any fishponds, a layer of impermeable sheet pile wall should be erected along the site boundary adjacent to

fishponds after commencement of site works. The sheet pile wall should be constructed by silent piling method (Press-in method) which induces minimal vibration. Therefore, the stability of the fishpond bund will not be influenced by the construction of the sheet pile wall. In the event of excessive groundwater infiltration being observed during underpass / depressed road construction, grouting should be applied as far as practicable to limit the groundwater inflow to acceptable levels. With these measures, significant impacts are not anticipated. No operational impacts anticipated.

Blockage of Access Roads to Fishponds

9.7.5 Temporary traffic arrangements will be implemented to ensure the continued or alternative provision of access to fishponds throughout the construction phase. Detailed arrangement cannot be provided at this stage, but the project proponent will be responsible for drawing up such an arrangement with the contractor as and when necessary, throughout the construction period. Subsequently, access to the fishponds would be provided in the operational phase.

Good Site Practices

9.7.6 Standard mitigation measures to control site runoff and other pollutants (e.g. dust) caused by construction activities and good site practices will be implemented during the construction phase of the Project. Excavated material and other inert construction wastes produced will be transferred to proper recipients (i.e. landfill) (see **Section 6**). Sewage from the construction work force will be dealt with via a sewerage system and will not be discharged directly to surrounding water bodies. With these measures, indirect impacts on fisheries due to construction activities will be insignificant (for details of measures protecting nearby water bodies including fishponds (see **Section 5**).

Compensation

Loss of Pond Areas

9.7.7 Permanent loss of a small area of 0.25 ha inactive fishpond due to the footprint of the ventilation opening and associated maintenance access required for the underpass section of the Project Alignment is considered to be a negligible impact, in view of the small contribution to the total fishpond area in Hong Kong (below 0.1%). It is considered that no mitigation is required for this loss.

Secondary Impact from Wetland Compensation

9.7.8 As described in **Sections 9.5.10 – 9.5.11**, following completion of the ECR, Area 4 will be subject to ecological enhancement measures and converted into ecological enhanced ponds. Considering that the existing Pond 37 – 38 are inactive ponds, and that Pond 36 only resumed fisheries production recently, the impact on fisheries production is therefore considered negligible. No further mitigation for these impacts to fisheries production are therefore required.

9.8 Evaluation of Residual Impacts and Environmental Monitoring and Audit

9.8.1 With the above measures in place, along with measures for mitigating water quality impacts and managing waste, no residual fisheries impacts are expected.

9.8.2 With the implementation of monitoring and audit for water quality, no specific programme for fisheries is deemed necessary.

9.9 Conclusion

9.9.1 Since the pond areas to be lost do not account for a significant proportion of the total fishpond area in Hong Kong, the fisheries impact is considered to be negligible. Indirect impacts arising from construction activities and operation of the proposed development would be properly mitigated through standard practices and thus no significant fisheries impact is anticipated. Overall, no unacceptable fisheries impact is predicted from this project.

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